

Court No. - 46

Case :- WRIT - C No. - 20306 of 2020

Petitioner :- Kamaluddin

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Sri B.C. Rai, learned counsel for the petitioner, learned Standing Counsel for respondent nos. 1 to 3 and Sri Mukesh Kumar, learned counsel appearing for respondent nos. 4 and 5.

The present writ petition has been filed for the following reliefs:

"[i] issue a writ of certiorari to quash the notice dt. 16-04-2018 (Annexure No. 5), demand notice dt. 07-01-2019 (Annexure No. 7), permanent disconnection notice dt. 20-09-2019 (Annexure No. 8) and undated reminder letter issued through registered post dt. 05-12-2019 (Annexure No. 11);

[ii] issue an appropriate writ order or direction directing that respondents No. 3 & 5 to produce the relevant records including the demand notice and recovery citation dt. 17-03-2020 and upon production thereof the same may be quashed;

[iii] issue a writ, order or direction in the nature of writ of mandamus directing respondent No. 5 to restore electricity supply forthwith and further restrained the respondents concerned not to enforce recovery citation against the petitioner;"

The petitioner has earlier approached this Court by filing Writ-C No. 2903 of 2019 (Kamaluddin v. State of U.P. And others), wherein following order was passed on 29.01.2019:

"Heard learned counsel for the petitioner, Sri Kapil Dev Singh Rathore, learned counsel appearing for the respondents-Power Corporation and the learned Standing Counsel appearing for the State-respondent no.1.

By the order of this Court dated 8.2.2018 passed in Writ C No.4897 of 2018, provisional assessment order was quashed and a direction was issued upon the statement made by the learned counsel appearing for the Electricity Department that a

fresh provisional assessment order will be passed and the objections will be invited and thereafter final assessment will be made.

Learned counsel for the petitioner submits that although a fresh provisional assessment order has been passed and the petitioner has also filed his representation/objection but without considering his objection a demand has been raised for a sum of Rs. 33,98,943/- . It is further submitted that no final assessment has been made, yet the department is pressing for the recovery of the said amount.

In our view, it would be appropriate to direct the Executive Engineer to consider the objection of the petitioner and then proceed further in the matter.

The writ petition is disposed of with the observation that against the provisional assessment dated 16.4.2018 the objection filed by the petitioner as contemplated under Section 126(3) of the Electricity Act on 1.5.2018 be considered and decided after giving opportunity to the petitioner and will also fix a date for personal hearing as provided under Clause 8.2 of the U.P. Supply Code. The said order shall be passed within a period of one month from today.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the demand notice dated 7.1.2019."

Pursuant to the said order, the Executive Engineer, respondent no. 5, has passed the impugned assessment order, annexed as Annexure-11 to the writ petition.

Learned counsel for the petitioner submits that the said impugned order does not contain any reason, the same is cryptic and the objection preferred by the petitioner pursuant to the provisional assessment notice dated 16.04.2018 has not been considered. According to him, the said assessment order is bad in the eyes of law and as such, the consequential proceedings for demand are not sustainable. He contends that in compliance with Para 6.8 of the Electricity Supply Code, 2005 the assessing officer is required to pass a speaking order and in the present case the order does not contain any reason. Learned counsel for the petitioner has relied upon a judgment of a Division Bench of this Court in the case of Ashok Kumar and others v. State of

U.P. and others, 2008 (6) ADJ 660 (DB).

Sri Mukesh Kumar, learned counsel appearing for respondent nos. 4 and 5- Power Corporation, could not establish that any reason has been assigned while passing the assessment order. He submits that instead of keeping this writ petition pending on the board of this Court, it would be in the interest of justice that the matter may be remitted to the Executive Engineer to pass a fresh order after considering the objections of the petitioner dated 01.05.2018, annexed as Annexure-6 to the writ petition.

On perusal of record we find that the undated order (Annexure-11 to the writ petition) does not consider the objection of the petitioner dated 01.05.2018 and as such, the same cannot be sustained. In view thereof, the impugned order, annexed at Annexure-11 to the writ petition, is hereby quashed. The matter is remitted to the respondent no. 5, the Assessing Officer, to consider afresh and pass a speaking and reasoned order within a period of four weeks from today.

Accordingly, the writ petition is disposed of.

Order Date :- 8.12.2020

SKT/-